

Muneeb Vishwakarma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 July 2022 · WRIT - C No. - 18723 of 2022 · **Writ disposed without merits; objection under para 6.8 with stay of coercive recovery.**

HEADNOTE

A writ to quash a recovery citation was disposed of without any opinion on merits. The consumer was given liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, with a short stay of coercive action on the demand.

FACTUAL SUMMARY

Muneeb Vishwakarma filed a writ petition against the State of U.P. and the distribution licensee seeking certiorari to quash a recovery citation dated 5 May 2022 and a mandamus restraining coercive recovery steps. Counsel for the Power Distribution Corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery citation under clause 6.8

HOLDING

Without expressing any opinion on merits, the writ challenging a recovery citation was disposed of with liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined to examine the recovery citation on merits and relegated the consumer to the statutory objection under paragraph 6.8 of the Supply Code. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Liberty was granted to file the clause 6.8 objection for time-bound disposal after hearing, with a stay of coercive recovery for eight weeks or till that disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 5.5.2022

The Court expressly declined to express any opinion on the merits of the petitioner's challenge to the demand. ¶ 1